

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                     |                           |                                                        |                                               |                                 |
|---------------------------------------------------|-----------------------------------------------------|---------------------------|--------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Cassandra Fenkel                 | Team:<br>Squad #11                                  | CCRB Case #:<br>201606431 | <input checked="" type="checkbox"/> Force              | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                   |                                                     |                           | <input checked="" type="checkbox"/> Abuse              | <input type="checkbox"/> O.L.                 | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Saturday, 07/23/2016 12:53 PM | Location of Incident:<br>75th Precinct stationhouse | 18 Mo. SOL<br>1/23/2018   | Precinct:<br>75                                        |                                               |                                 |
| Date/Time CV Reported<br>Tue, 07/26/2016 11:32 AM | CV Reported At:<br>CCRB                             | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Tue, 07/26/2016 11:32 AM |                                               |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
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| Subject Officer(s)       | Shield | TaxID  | Command |
|--------------------------|--------|--------|---------|
| 1. POM Mallory Paige     | 22636  | 942317 | 075 PCT |
| 2. An officer            |        |        | 075 PCT |
| 3. SGT Vincent Calderone | 2981   | 936038 | 075 PCT |
| 4. POM Kevin Ulrich      | 16881  | 955608 | 075 PCT |
| 5. POF Tia Stephenson    | 26127  | 945386 | 075 PCT |
| 6. Officers              |        |        | 075 PCT |

| Witness Officer(s)     | Shield No | Tax No | Cmd Name |
|------------------------|-----------|--------|----------|
| 1. SGT Sashanna Wynter | 01115     | 946715 | 075 PCT  |

| Officer(s)                | Allegation                                                                                    | Investigator Recommendation |
|---------------------------|-----------------------------------------------------------------------------------------------|-----------------------------|
| A . SGT Vincent Calderone | Force: Sergeant Vincent Calderone used physical force against § 87(2)(b) and § 87(2)(b)       | A . Unsubstantiated         |
| B . POM Mallory Paige     | Force: Police Officer Mallory Paige used physical force against § 87(2)(b) and § 87(2)(b)     | B . Unsubstantiated         |
| C . SGT Vincent Calderone | Abuse: Sergeant Vincent Calderone threatened § 87(2)(b) and § 87(2)(b) with the use of force. | C . Unsubstantiated         |
| D . SGT Vincent Calderone | Force: Sergeant Calderone used a Taser against § 87(2)(b)                                     | D . Exonerated              |
| E . SGT Vincent Calderone | Force: Sergeant Vincent Calderone used a Taser against § 87(2)(b)                             | E . Unfounded               |
| F . POM Kevin Ulrich      | Force: Police Officer Kevin Ulrich used physical force against § 87(2)(b)                     | F . Exonerated              |
| G . POM Mallory Paige     | Force: Police Officer Mallory Paige used physical force against § 87(2)(b)                    | G . Unsubstantiated         |
| H . POM Mallory Paige     | Force: Police Officer Mallory Paige restricted § 87(2)(b)'s breathing.                        | H . Unsubstantiated         |
| I . POM Kevin Ulrich      | Force: Police Officer Kevin Ulrich used physical force against § 87(2)(b)                     | I . Unsubstantiated         |

| <b>Officer(s)</b>         | <b>Allegation</b>                                                                   | <b>Investigator Recommendation</b> |
|---------------------------|-------------------------------------------------------------------------------------|------------------------------------|
| J . SGT Vincent Calderone | Force: Sergeant Vincent Calderone used physical force against § 87(2)(b)            | J . Unsubstantiated                |
| K . POM Mallory Paige     | Force: Police Officer Mallory Paige used physical force against § 87(2)(b)          | K . Unsubstantiated                |
| L . POF Tia Stephenson    | Force: Police Officer Tia Stephenson used physical force against § 87(2)(b)         | L . Unsubstantiated                |
| M . POF Tia Stephenson    | Discourtesy: Police Officer Tia Stephenson spoke discourteously to § 87(2)(b)       | M . Unsubstantiated                |
| N . Officers              | Force: Officers used physical force against § 87(2)(b) and § 87(2)(b)               | N . Officer(s) Unidentified        |
| O . An officer            | Abuse: An officer threatened § 87(2)(b) with the use of force.                      | O . Officer(s) Unidentified        |
| P . POM Mallory Paige     | Abuse: Police Officer Mallory Paige did not obtain medical treatment for § 87(2)(b) | P . Unsubstantiated                |

### Case Summary

On July 26, 2016, § 87(2)(b) called the CCRB and filed this complaint (Board Review 01) on behalf of her daughter, son-in-law, and grandchildren: § 87(2)(b)

§ 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b). That same day, § 87(2)(b)'s sister, called the IAB Command Center to file this complaint. Neither § 87(2)(b) nor § 87(2)(b) witnessed the incident.

On July 23, 2016, at approximately 12:53 p.m., § 87(2)(b) arrived at the 75<sup>th</sup> Precinct stationhouse in Brooklyn to retrieve property that had been vouchered pursuant to a previous arrest with his wife, § 87(2)(b) and their three children, § 87(2)(b) and § 87(2)(b). § 87(2)(b) spoke with PO Mallory Paige and Sgt. Vincent Calderone of the 75<sup>th</sup> Precinct and was informed that some of his property could not be returned because it was vouchered as arrest evidence. Sgt. Calderone and PO Paige then allegedly pushed § 87(2)(b) and § 87(2)(b) out of the 75<sup>th</sup> Precinct stationhouse (**Allegation A, Allegation B**).

Once outside, § 87(2)(b) and § 87(2)(b) remained within feet of the stationhouse front doors, and § 87(2)(b) continued talking about obtaining his property. Sgt. Calderone drew his Taser and allegedly pointed it at § 87(2)(b) and § 87(2)(b) (**Allegation C**). Sgt. Calderone then discharged his Taser and one prong struck § 87(2)(b) while the other prong allegedly struck § 87(2)(b) (**Allegation D, Allegation E**).

§ 87(2)(b) fled towards the intersection of Sutter Avenue and Essex Street, where he was taken to the ground by PO Kevin Ulrich of the 75<sup>th</sup> Precinct (**Allegation F**). PO Paige then allegedly pressed his knee against § 87(2)(b)'s head and back, allegedly restricting § 87(2)(b)'s breathing, and allegedly punched him five times in the left and right sides of his ribs (**Allegation G, Allegation H**). § 87(2)(b) was subsequently handcuffed and escorted to a prisoner van by PO Ulrich. There, PO Ulrich allegedly punched § 87(2)(b) once in the face (**Allegation I**).

At this time, § 87(2)(b) was being placed under arrest by Sgt. Calderone, PO Paige, and PO Tia Stephenson of the 75<sup>th</sup> Precinct. Sgt. Calderone, PO Paige, and PO Stephenson allegedly pushed § 87(2)(b) into a brick wall (**Allegation J, Allegation K, and Allegation L**), and PO Stephenson allegedly stated, "You're a filthy animal. You don't deserve to be a mother" (**Allegation M**). Unidentified officers allegedly pushed and pulled § 87(2)(b) and § 87(2)(b) away from the scene (**Allegation N**), and an unidentified officer allegedly told § 87(2)(b) he "would break every bone" in § 87(2)(b)'s body (**Allegation O**).

§ 87(2)(b) was lodged in a holding cell inside the stationhouse, where he informed PO Paige that he and his family members needed to go to the hospital. PO Paige allegedly told § 87(2)(b) that if anyone went to the hospital, § 87(2)(b)'s children would be taken into the custody of the Administration for Children's Services ("ACS") (**Allegation P**).

§ 87(2)(b) and § 87(2)(b) were arrested for § 87(2)(b) (Board Review 02, Board Review 03). [§ 87(2)(b)] [§ 86(1)(3)&(4)] [§ 87(2)(c)]

There is no video footage of this incident.

### **Mediation, Civil and Criminal Histories**

- This case was unsuitable for mediation.
- As of October 19, 2016, a Notice of Claim has not been filed with the NYC Comptroller's Office regarding this incident (Board Review 04).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
[REDACTED]  
[REDACTED]  
[REDACTED]
- [REDACTED]  
[REDACTED]  
[REDACTED]

### **Civilian and Officer CCRB Histories**

- This is [§ 87(2)(b)]'s third CCRB complaint (Board Review 09) and [§ 87(2)(b)]'s second CCRB complaint (Board Review 10). [§ 87(2)(b)]  
[REDACTED]
- This is the first CCRB complaint involving [§ 87(2)(b)] (Board Review 11), [§ 87(2)(b)] (Board Review 12), [§ 87(2)(b)] (Board Review 13), [§ 87(2)(b)] (Board Review 14), and [§ 87(2)(b)] (Board Review 15).
- Sgt. Calderone has been a member-of-the-service for 11 years and has six prior CCRB complaints involving six allegations, one of which was substantiated. In CCRB case #200609865, a refusal to process a civilian complaint allegation was substantiated. The Board recommended instructions and the NYPD concurred with this recommendation.
- PO Paige has been a member-of-the-service for 10 years and has 11 prior CCRB complaints involving 21 allegations, none of which were substantiated [§ 87(2)(g)]  
[REDACTED]
- PO Ulrich has been a member-of-the-service for three years and has one prior CCRB complaint involving two physical force allegations, both of which were exonerated.
- PO Stephenson has been a member-of-the-service for eight years and has one prior CCRB complaint involving two allegations, none of which were substantiated [§ 87(2)(g)]  
[REDACTED]

### **Findings and Recommendations**

#### **Explanation of Subject Officer Identification**

[§ 87(2)(b)] (Board Review 16, Board Review 17) alleged that the officer who later escorted him to the prisoner van, described as a white male standing taller than 6'0" with a slender build, in his late thirties, and dressed in uniform, was the officer who punched him in the face. In his CCRB interview, PO Ulrich (Board Review 18) identified himself as the officer who brought [§ 87(2)(b)] to the prisoner van. Additionally, in his CCRB Interview Report Worksheet (Board Review 19), PO Ulrich described himself as a [§ 87(2)(b)]-old white male standing 6'4" tall. [§ 87(2)(g)]  
[REDACTED] (Board Review 20) and [§ 87(2)(b)] alleged that officers used force against [§ 87(2)(b)] and [§ 87(2)(b)] which was

corroborated by § 87(2)(b) (Board Review 21) and § 87(2)(b) (Board Review 22). § 87(2)(b) attributed these allegations to an unidentified black male officer with a pony tail, but § 87(2)(b) and § 87(2)(b) were unable to provide detailed physical descriptions of the alleged subject officer(s). § 87(2)(g)

§ 87(2)(b) alleged that the black male officer with a ponytail said he would “break every bone in [his] body.” None of the officers interviewed fit this description or acknowledged hearing any officer make this statement. Additionally, none of the officers, including the 75<sup>th</sup> Precinct desk sergeant, Sgt. Sashanna Wynter (Board Review 23), could identify any black male officer with a pony tail, even when shown a photograph of the subject officer (Board Review 24), which was taken by § 87(2)(b) § 87(2)(g)

**Allegation A – Force: Sergeant Vincent Calderone used physical force against § 87(2)(b)**

**and § 87(2)(b)**

**Allegation B – Force: Police Officer Mallory Paige used physical force against § 87(2)(b)**

**and § 87(2)(b)**

During her CCRB interview, § 87(2)(b) testified that after approximately five minutes of speaking with the officers, she and § 87(2)(b) were ordered to leave the stationhouse, and that they, along with their three children, walked towards the stationhouse doors without hesitation. They reached a vestibule area with two sets of doors leading in and out of the stationhouse within seconds. § 87(2)(b) and their children passed through the first set of doors, but before they could reach the second set of doors, Sgt. Calderone and PO Paige allegedly both placed their hands against § 87(2)(b) and § 87(2)(b)'s backs and pushed them outside of the stationhouse. However, in her initial phone statement to the CCRB (Board Review 25), § 87(2)(b) alleged that Sgt. Calderone solely pushed her and § 87(2)(b) out of the stationhouse.

During his CCRB interview, § 87(2)(b) testified that Sgt. Calderone told § 87(2)(b) “Let’s go,” placed his hand on her back, and guided her towards the exit before he allegedly pushed § 87(2)(b) out of the stationhouse. However, during a follow-up phone call with the CCRB (Board Review 26), § 87(2)(b) alleged that PO Paige, not Sgt. Calderone, pushed him out of the stationhouse.

PO Paige (Board Review 27) testified that after he spoke with § 87(2)(b) in the stationhouse lobby, Sgt. Calderone approached and ordered § 87(2)(b) leave. PO Paige testified that he and additional officers, he could not recall whom, formed a wall around § 87(2)(b) and § 87(2)(b) to escort them out of the stationhouse. No officer made physical contact with § 87(2)(b). Rather, he was forced out of the stationhouse solely by the sheer wall of officers surrounding him. PO Paige denied that he or any other officers pushed § 87(2)(b) and § 87(2)(b) out of the stationhouse.

Sgt. Calderone (Board Review 28) testified that he encountered PO Paige and § 87(2)(b) in the lobby of the stationhouse, and that he escorted § 87(2)(b) out of the stationhouse with the assistance of PO Paige and PO Michael Misilewich of the 75<sup>th</sup> Precinct by standing behind § 87(2)(b) and walking forward toward the door. Sgt. Calderone denied

that he or any officers pushed or otherwise made physical contact with § 87(2)(b) and § 87(2)(b)

PO Stephenson (Board Review 29) testified that after Sgt. Calderone ordered § 87(2)(b) and § 87(2)(b) to exit the stationhouse, § 87(2)(b) and § 87(2)(b) each responded, “You can go fuck yourself...this is bullshit,” but both exited the stationhouse on their own accord. PO Stephenson denied that any officers pushed § 87(2)(b) and § 87(2)(b) out of the stationhouse.

PO Ulrich denied being present to witness this aspect of the incident and Sgt. Wynter testified that from her position at the front desk, she could not see this aspect of the incident.

§ 87(2)(g)

It is therefore recommended that **Allegation A** and **Allegation B** be closed as **unsubstantiated**.

**Allegation C – Abuse of Authority: Sergeant Vincent Calderone threatened § 87(2)(b) and § 87(2)(b) with the use of force.**

§ 87(2)(b) testified that once outside of the stationhouse, he stood near the front doors and refused to leave without his property despite Sgt. Calderone’s orders for him to do so. Although it is undisputed that Sgt. Calderone ultimately discharged his Taser (see Allegation D), § 87(2)(b) alleged that prior to doing so, Sgt. Calderone waved it back and forth in the air and then allegedly pointed it at § 87(2)(b) and § 87(2)(b). § 87(2)(b) said that Sgt. Calderone waved the Taser around himself as he taunted her and § 87(2)(b) stating, “Now you out the precinct. Now you can’t do nothing.” However, neither § 87(2)(b) nor § 87(2)(b) (Board Review 30) alleged that Sgt. Calderone pointed the Taser at anyone or anything prior to discharging it.

Sgt. Calderone denied pointing his Taser at § 87(2)(b) and § 87(2)(b) prior to discharging it. He said it was discharged immediately after he drew it.

PO Paige could not recall if Sgt. Calderone threatened anyone with the Taser prior to discharging it, and PO Ulrich and PO Stephenson denied that Sgt. Calderone did so. PO Ulrich said that Sgt. Calderone appeared to discharge the Taser immediately after he drew it. Sgt. Wynter was not present to witness this aspect of the incident.

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **unsubstantiated**.

**Allegation D – Force: Sergeant Calderone used a Taser against § 87(2)(b)**

It is undisputed that Sgt. Calderone used a Taser against § 87(2)(b). § 87(2)(b) testified that after Sgt. Calderone drew his Taser, he became increasingly agitated and started cursing. § 87(2)(b) could not recall exactly what he said, but noted that he said “everything.” Sgt. Calderone instructed PO Paige to place § 87(2)(b) under arrest. PO Paige attempted to grab § 87(2)(b)’s arm. In response,

§ 87(2)(b) backed up to evade PO Paige. Sgt. Calderone discharged his Taser with one prong allegedly striking § 87(2)(b) in the left inner thigh.

§ 87(2)(b) testified that after Sgt. Calderone drew his Taser, § 87(2)(b) ran away from the officers. § 87(2)(b) denied that § 87(2)(b) initiated any physical contact with the officers. After § 87(2)(b) fled approximately seven feet from Sgt. Calderone, § 87(2)(b) observed Taser wires fly past her, with one prong striking § 87(2)(b) in the left thigh.

Sgt. Calderone testified that § 87(2)(b) remained within one foot of the stationhouse doors, repeatedly stated, “Fuck you. I’m not leaving without my property. I’ll fuck you up,” and stepped back with his fists balled up and raised near his torso. § 87(2)(b) then pushed Sgt. Calderone in the chest, at which point Sgt. Calderone ordered PO Paige to arrest him. § 87(2)(b) pushed PO Paige in the chest. Sgt. Calderone drew his Taser, pointed it at § 87(2)(b) s “lower center mass,” and immediately discharged it in cartridge mode.

Sgt. Calderone testified that he strategically chose to use his Taser as opposed to any other means of force because the Taser creates “a window of safety” where bodily strikes do not need to be used to take a resistant or combative person into custody. Sgt. Calderone believed using bodily strikes created a higher likelihood of someone being injured in comparison to the Taser. Sgt. Calderone did not use his pepper spray because he did not believe it would stop § 87(2)(b) from further assaulting officers.

PO Paige corroborated that § 87(2)(b) pushed Sgt. Calderone, at which point he was considered under arrest. PO Paige took a single step forward towards § 87(2)(b) to affect the arrest, and in response, § 87(2)(b) placed one of his children in front of him and fled across the street. As he fled, Sgt. Calderone discharged his Taser.

PO Ulrich did not see § 87(2)(b) make physical contact with any officer prior to being Tasered, but testified that § 87(2)(b) flailed his arms immediately prior to Sgt. Calderone discharging the Taser. After being tasered, § 87(2)(b) pushed Sgt. Calderone in the chest and fled eastbound on Sutter Avenue.

PO Stephenson denied seeing § 87(2)(b) push Sgt. Calderone. She said that Sgt. Calderone discharged his Taser, but that neither prong struck § 87(2)(b) as they each landed in the street.

According to NYPD Patrol Guide, Procedure 221-02, officers may use reasonable force under the circumstances to gain control of a person who is resisting (Board Review 31). According to NYPD Patrol Guide, Procedure 221-08 (Board Review 32), a conducted electrical weapon should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other persons present.

§ 87(2)(g)

§ 87(2)(b) it is therefore recommended that **Allegation D** be closed as exonerated.

**Allegation E – Force: Sergeant Calderone used a Taser against § 87(2)(b)**

All five civilians involved in this incident alleged that in addition to Sgt. Calderone's discharged Taser making contact with § 87(2)(b) it also struck § 87(2)(b). § 87(2)(b) testified that despite § 87(2)(b) guiding her further away from the officers as she stood outside of the stationhouse near a mailbox, Sgt. Calderone simultaneously pointed his Taser at § 87(2)(b)'s finger and § 87(2)(b)'s left leg, and that when Sgt. Calderone discharged his Taser once, it struck § 87(2)(b) as well as her right pinky finger. § 87(2)(b) could not recall what the sensation felt like, but said it hurt and caused slight swelling to her finger, but no broken skin.

§ 87(2)(b) corroborated that when Sgt. Calderone discharged his Taser, one prong struck § 87(2)(b) in the thigh and the other struck § 87(2)(b) in her hand, causing § 87(2)(b) to cry and scream out, "Ow! It burns." § 87(2)(b) corroborated that when Sgt. Calderone discharged his Taser, one dart struck § 87(2)(b) in the thigh and the other "grazed" § 87(2)(b)'s right pinky finger. § 87(2)(b) immediately began to cry, and she sustained an "ashy" mark on her finger as a result.

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Sgt. Calderone testified that at the time he discharged his Taser, § 87(2)(b) and § 87(2)(b) were standing "a few feet" to § 87(2)(b)'s right. Sgt. Calderone discharged his Taser with the intent of solely striking § 87(2)(b). Upon discharge, one Taser prong hit § 87(2)(b)'s pants, and the other prong hit a mailbox in front of the stationhouse before falling to the ground. Sgt. Calderone denied that any Taser prong made contact with § 87(2)(b) and denied that there was any indication that § 87(2)(b) was struck by a Taser prong.

Sgt. Calderone's CCRB testimony is consistent with the TRI Report (Board Review 34) he prepared regarding the incident, which corroborated that no Taser prong made contact with § 87(2)(b). Additionally, no AIDED report (Board Review 35) was prepared for § 87(2)(b).

Each officer interviewed who witnessed this aspect of the incident denied that either Taser prong made contact with § 87(2)(b). PO Paige testified that when Sgt. Calderone discharged the Taser, § 87(2)(b) had already fled from his initial position near § 87(2)(b) who stood closer to Sgt. Calderone than § 87(2)(b) at the time. Following the incident, PO Paige was informed that only one prong struck § 87(2)(b)'s pants, and that the other prong struck the ground. PO Paige denied hearing § 87(2)(b) complain of any pain or injury from the Taser, though he said that § 87(2)(b) and § 87(2)(b) were crying because the Taser discharge scared them. PO Stephenson testified that both Taser prongs landed on the street, although PO Ulrich testified that both prongs made contact with § 87(2)(b)'s chest.

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(g)

it is therefore recommended that **Allegation E** be closed as **unfounded**.

**Allegation F – Force: Police Officer Kevin Ulrich used physical force against** § 87(2)(b)

It is undisputed by those present at the time, that PO Ulrich brought § 87(2)(b) to the ground. § 87(2)(b) testified that after yelling, “You tased my daughter,” PO Ulrich tackled him to the ground like a football player, so that § 87(2)(b) landed on his left forearm, causing scrapes and elbow sensitivity.

PO Ulrich testified that § 87(2)(b) was completely unaffected after being tasered, and that he fled eastbound on Sutter Avenue with the two Taser prongs hanging from his shirt. Sgt. Calderone, along with additional officers, yelled, “Stop him!” and PO Ulrich pursued § 87(2)(b) for approximately five seconds while yelling “Stop! Stop!” PO Ulrich lunged at § 87(2)(b)’s center mass, made contact, and brought him to the ground. PO Ulrich testified that the described forcible takedown was necessary because § 87(2)(b) had assaulted Sgt. Calderone, had Taser prongs attached to him, was a fleeing perpetrator, and failed to comply with multiple verbal commands to stop.

Sgt. Calderone, PO Paige, and PO Stephenson denied witnessing this aspect of the incident and said they were apprehending § 87(2)(b) at this time, although PO Paige testified that he later observed § 87(2)(b) on the ground.

A photograph of § 87(2)(b) taken at the time of his CCRB interview depicts a scrape to his left forearm (Board Review 36). § 87(2)(a) PHL § 18(6)

According to Patrol Guide Procedure 221-02, officers may use reasonable force under the circumstances to gain control of a person who is resisting arrest.

§ 87(2)(g)

It is therefore recommended that **Allegation F** be closed as **exonerated**.

**Allegation G – Force: Police Officer Mallory Paige used physical force against** § 87(2)(b)

**Allegation H – Force: Police Officer Mallory Paige restricted** § 87(2)(b) **s breathing.**

**Allegation I – Force: Police Officer Kevin Ulrich used physical force against** § 87(2)(b)

§ 87(2)(b) testified that after PO Ulrich tackled him to the ground, he tried to stand up and turn around to see § 87(2)(b) despite an officer telling him not to resist. § 87(2)(b) alleged that PO Paige stood behind him and placed his knee against § 87(2)(b)’s back, causing § 87(2)(b) to have difficulty breathing. § 87(2)(b) said, “I can’t breathe” and “Get off of me.” PO Paige allegedly moved his knee from § 87(2)(b)’s back to his head. After handcuffing § 87(2)(b) PO Paige allegedly punched him approximately five times, alternating between the left and right sides of his ribs. PO Ulrich

escorted § 87(2)(b) to a prisoner van, where § 87(2)(b) had a view of officers attempting to arrest § 87(2)(b). As § 87(2)(b) watched, PO Ulrich allegedly punched him once in the face, making contact with § 87(2)(b)'s nose and lip, and causing § 87(2)(b) to sustain a cut to his lip.

As discussed above, § 87(2)(b) did not witness this aspect of the incident.

PO Paige testified that when he observed § 87(2)(b) he was already on the ground and that approximately three or four unidentified officers had surrounded § 87(2)(b) and were on top of him in “a football pile.” As the officers ordered § 87(2)(b) to “stop resisting” and “give us your arm,” § 87(2)(b) attempted to wriggle his body out from underneath the officers. PO Paige denied that he or any other officer placed their knee against § 87(2)(b)'s back or head, and he denied punching § 87(2)(b). PO Paige denied that he did anything that may have restricted § 87(2)(b)'s breathing and he denied hearing § 87(2)(b) complain of such. PO Paige testified that he only observed § 87(2)(b)'s apprehension for approximately two seconds because he then turned his attention to apprehending § 87(2)(b).

PO Ulrich testified that after he brought § 87(2)(b) to the ground, he rolled him over onto his stomach. At this time, numerous unidentified officers and Sgt. Calderone surrounded § 87(2)(b). § 87(2)(b) yelled, “fuck you,” placed his arms underneath his chest, and attempted to push off the ground with his legs. The officers grabbed § 87(2)(b)'s arms and gave multiple orders such as “stop tensing” and “give me your hands.” PO Ulrich denied that any officer placed their knee against § 87(2)(b)'s back or head, punched § 87(2)(b) in the face, or did anything that may have restricted § 87(2)(b)'s breathing. PO Ulrich denied that he punched § 87(2)(b) and he denied that there was any issue with placing § 87(2)(b) into the prisoner van.

Both Sgt. Calderone and PO Stephenson denied witnessing this aspect of the incident.

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b) § 87(2)(b)'s arrest photograph (Board Review 37) does not depict the alleged lip laceration. § 87(2)(b)'s command log entry (Board Review 38) notes his physical condition as apparently normal.

§ 87(2)(g)

It is therefore recommended that **Allegation G, Allegation H, and Allegation I** be closed as **unsubstantiated**.

**Allegation J – Force: Sergeant Vincent Calderone used physical force against § 87(2)(b)**

**Allegation K – Force: Police Officer Mallory Paige used physical force against § 87(2)(b)**

**Allegation L – Force: Police Officer Tia Stephenson used physical force against § 87(2)(b)**

**Allegation M – Discourtesy: Police Officer Tia Stephenson spoke discourteously to § 87(2)(b)**

§ 87(2)(b) testified that after § 87(2)(b) fled, she began to walk home with § 87(2)(b) and § 87(2)(b) § 87(2)(b) was speaking on her cell phone with § 87(2)(b) when Sgt. Calderone and additional officers approached her from behind. Sgt. Calderone pulled § 87(2)(b)'s phone from her hand and began to handcuff her. Sgt. Calderone, PO Paige, and PO Stephenson then all allegedly pushed § 87(2)(b) into a brick wall. She said she sustained abrasions to her right wrist and shoulder as a result of making contact with the wall. Once against the wall, § 87(2)(b) then moved her head, arms, and shoulders from side-to-side to evade the officers. She also said, "Get off me!" PO Stephenson allegedly replied, "You're a filthy animal. You don't deserve to be a mother."

§ 87(2)(b) testified that from the prisoner van, he observed three or four officers push § 87(2)(b) through the doors of the 75<sup>th</sup> Precinct stationhouse. § 87(2)(b) did not corroborate hearing any officer make the alleged discourteous statement to § 87(2)(b).

§ 87(2)(b) (Board Review 39) testified that while on the phone with § 87(2)(b) she overheard a female voice say, "You filthy animal."

Sgt. Calderone testified that § 87(2)(b) attempted to run toward § 87(2)(b) and that he and PO Paige ordered her to stop, but she refused to comply. PO Paige grabbed § 87(2)(b)'s arms to handcuff her, but § 87(2)(b) pulled her arms away and tensed her body. Sgt. Calderone could not recall if he used any physical force against § 87(2)(b) or whether she was pushed against a wall.

PO Paige corroborated Sgt. Calderone's assertion that § 87(2)(b) walked toward § 87(2)(b). Officers, PO Paige could not recall who, instructed § 87(2)(b) to "back off" and turn around, but she refused to comply. Those officers blocked § 87(2)(b)'s path, and § 87(2)(b) pushed herself into them. As those officers attempted to arrest § 87(2)(b) she resisted by flailing her arms. Those officers pinned § 87(2)(b) against a wall in a standing position, which PO Paige believed was necessary to gain control of § 87(2)(b). PO Paige denied that he participated in using physical force against § 87(2)(b).

PO Stephenson testified that PO Paige told § 87(2)(b) that she was under arrest and that § 87(2)(b) stated "No." § 87(2)(b) backed herself up into a wall across the street from the 75<sup>th</sup> Precinct stationhouse. PO Paige and PO Stephenson gave multiple orders for § 87(2)(b) to "give us your hands" and "stop resisting," but § 87(2)(b) refused to comply. PO Stephenson and PO Paige grabbed § 87(2)(b)'s arms and pulled them behind her back to rear handcuff her. No officer used any additional physical force against § 87(2)(b).

PO Stephenson denied making the alleged discourteous statement to § 87(2)(b) and no officer interviewed acknowledged hearing her do so.

PO Ulrich denied witnessing these aspects of the incident.

§ 87(2)(a) PHL § 18(6)

§ 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation J, Allegation K, Allegation L, and Allegation M** be closed as **unsubstantiated**.

**Allegation N – Force: Officers used physical force against** § 87(2)(b)  
§ 87(2)(b) **and** § 87(2)(b)

**Allegation O – Abuse of Authority: An officer threatened** § 87(2)(b) **with the use of force.**

§ 87(2)(g)  
§ 87(2)(g)  
§ 87(2)(g)  
§ 87(2)(g) It is therefore recommended that **Allegation N** and **Allegation O** be closed as **officer(s) unidentified**.

**Allegation P – Abuse of Authority: Police Officer Mallory Paige did not obtain medical treatment for** § 87(2)(b)

§ 87(2)(b) alleged that while lodged in a holding cell inside of the 75<sup>th</sup> Precinct stationhouse, he told PO Paige that he and his family needed to go to the hospital, and that PO Paige allegedly replied that if anyone went to the hospital, his children would be taken by ACS. § 87(2)(b) never received medical attention while in custody.

PO Paige testified that he asked § 87(2)(b) if he needed medical attention at the stationhouse desk, a procedural part of the pedigree sheet, and that § 87(2)(b) said no. PO Paige denied having additional contact with § 87(2)(b). He denied speaking with him near the holding cells and denied making any statements regarding notifying ACS, although ACS was subsequently notified and commenced an investigation into § 87(2)(b)'s family.

Sgt. Calderone testified that he requested EMS to the stationhouse to examine § 87(2)(b) because their presence is required anytime a Taser is utilized. He denied that § 87(2)(b) requested medical attention in his presence. The EMTs informed Sgt. Calderone that § 87(2)(b) refused medical attention, was not struck with the Taser's prongs, and had no visible injuries. Sgt. Calderone denied witnessing PO Paige refuse to provide § 87(2)(b) with medical attention. Neither PO Ulrich, PO Stephenson, Sgt. Calderone, nor Sgt. Wynter witnessed this aspect of the incident.

Event Documents (Board Review 41) confirm that EMS was called to the 75<sup>th</sup> Precinct stationhouse for a sick prisoner around the time of this incident, but the documents fail to identify the prisoner by name. Additionally, the event was closed as cancelled, so there was no actual hospital transport.

§ 87(2)(g)  
§ 87(2)(g)  
§ 87(2)(g) It is therefore recommended that **Allegation P** be closed as **unsubstantiated**.

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Squad: #11

Investigator: \_\_\_\_\_  
Signature Print Date

Squad Leader: \_\_\_\_\_

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|           | Title/Signature | Print | Date  |
| Reviewer: | _____           | _____ | _____ |
|           | Title/Signature | Print | Date  |